

EX No.1352/2023

Sri.SKN counsel for the DHR filed application u/o.21 Rule 5 and 6 of CPC for transfer the decree. Heard and perused. The plaintiff filed the suit for recovery of amount of Rs.7,79,444/- and said suit was decreed on 24.06.2019, now DHR filed the present execution petition for recovery of decretal amount. Now the present application filed stating that JDR is having permanent office at No.2, Chowrangee Terrace, Koltaka, West Bengal 700020 hence the decree has to be transfer to the jurisdictional court i.e., IV Civil Judge, Sr. Dvn., Alipore, West Bengal State. Considering the circumstance of the case if the decree is transfer to the IV Civil Judge, Sr. Dvn., Alipore, West Bengal State it is eazy to execute the decree. Hence this court proceed to pass following

ORDER

Application u/o. 21 Rule 5 and 6 of CPC filed by the DHR is allowed and decree of this case is transfer to IV Civil Judge, Sr. Dvn., Alipore, West Bengal State in the interest justice and equity.

**LVI ACC & SJ,
Bengaluru.**